

Amit Kushwaha v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 13 April 2023 · Writ-C No. 12200 of 2023 · **Liberty to object to provisional assessment; coercive action stayed**

HEADNOTE

Writ against a provisional assessment dated 14.02.2023 disposed of with no finding on merits. The consumer may file objections within two weeks before the Executive Engineer under the U.P. Electricity Supply Code, 2005; those objections are to be decided by a speaking order after hearing, preferably within two weeks. Coercive action is stayed for four weeks or until that decision, whichever is earlier.

FACTUAL SUMMARY

Amit Kushwaha moved the Allahabad High Court against the State of Uttar Pradesh and PVVNL officers, including the Executive Engineer of Electricity Distribution Khand-III, Ballia. He asked for quashing of an assessment order dated 14 February 2023, a direction to decide his representation of 20 February 2023, and immediate restoration of electricity at his premises. Counsel for the distribution respondents described the impugned order as a provisional assessment and said the U.P. Electricity Supply Code, 2005 permitted objections before the Executive Engineer.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::provisional-assessment-objection

Objection to a provisional assessment

HOLDING

Accepting that the order dated 14.02.2023 is a provisional assessment against which the U.P. Electricity Supply Code, 2005 provides for objections before respondent no. 3, the Court disposed of the writ without any opinion on merits. The petitioner may submit objections afresh, with a certified copy of this order, within two weeks before the Executive Engineer, Electricity Distribution Khand-III, PVVNL, Ballia. If filed, that officer shall decide them in accordance with law, preferably within two further weeks, by a speaking and reasoned order after a reasonable opportunity of hearing. For four weeks or until the objection is decided, whichever is earlier, no coercive action shall be taken. ¶ 1

FLAG The order invokes the U.P. Electricity Supply Code, 2005 as the objection remedy against a provisional assessment but names no clause. The clause key is the order's own description, not a numbered Code clause.

PRINCIPLE TAGS

provisional-assessment-objection-before-executive-engineer A writ seeking quashing of a provisional assessment and immediate restoration was disposed of, without a view on merits, by leaving the consumer to file objections before the Executive Engineer under the U.P. Electricity Supply Code, 2005, to be decided by a speaking order after hearing, with coercive action stayed for four weeks or until that decision. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE PROVISIONAL ASSESSMENT DATED 14.02.2023, THE REPRESENTATION OF 20.02.2023, AND RESTORATION OF SUPPLY

The Court expressed no opinion on the merits and left the objections to be decided by the Executive Engineer. ¶ 1

